

The Assam Court-Fees (Amendment) Act, 1932

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[An Act to amend to Court-Fees Act, 1870](#)

[Whereas it is necessary to amend the Court-Fees Act, 1870 \(Act VII of 1870\) in its application to Assam in the manner hereinafter appearing;](#)

[It is hereby enacted as follows:](#)

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Court-Fees (Amendment) Act, 1932.

(2)

It extends to the whole of Assam.

(3)

It shall come into force on the 1st May, 1932.

2.

Amendment of Section 7.

- In Section 7 of the Court-Fees Act, 1870 (Act VII of 1870) (hereinafter referred to as the principal Act)-
in sub-Clause (a) of Clause (v) for the word "ten" the word "twenty" shall be substituted.

3.

Amendment of Section 10.

- For Clause (ii) of Section 10 of the principal Act the following clause shall be substituted, namely:

"(1) In such case-

(a)

the suit shall be stayed until additional fee is paid and if additional fee is not paid within such time as the Court shall fix,
the suit shall be dismissed;

and whether the additional fee is or is not paid-

(b)

the Court may, if it is of opinion that the estimation has been grossly insufficient, further order that the expenses of the
commission, or such portion thereof as the Court may think reasonable, be paid by the party in default to the
Government, and the order so made shall have the force and effect of a decree passed by the Court."

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